

FEDERAL MARITIME COMMISSION

DOCKET NO. 15-10

**REVOCATION OF OCEAN TRANSPORTATION INTERMEDIARY
LICENSE NO. 017843 – WASHINGTON MOVERS, INC.**

**PROPOSED FINDINGS OF FACT
OF THE
BUREAU OF ENFORCEMENT**

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May 5, 2017

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Pursuant to the Administrative Law Judge's (ALJ) Order On October 13, 2016, Telephone Status Conference, served October 19, 2016, the Bureau of Enforcement (BOE) files these Proposed Findings of Fact (PFF). Each PFF provides a reference to the record supporting the factual proposition.¹ The ALJ previously established sixty-nine (69) Findings of Fact (FF), served October 19, 2016.² BOE proposes the following additional findings of fact.

PFF 1. The documents in BOE Ex. 3 are true copies of documents issued for the shipment which served as the basis for Sam Ghanem's conviction identified in BOE Ex. 2. (BOE Ex. 20, Response No. 1 to BOE Request For Admission) [hereinafter Resp. No.].

¹ The exhibits referred to herein reflect the numbers and letters assigned in the ALJ's List of Exhibits – October 19, 2016, or the exhibits tendered in BOE's Appendix filed herewith.

² BOE notes that with regard to the ALJ's Finding of Fact #5, records maintained by the Commission's Bureau of Certification and Licensing (BCL) now reflect 505 Hampton Park Blvd., Suite O, Capitol Heights, MD, 20743 as the principal address for Respondent.

- PFF 2. The individual identified as Sandra in BOE Ex. 3 is Sandra Rodriguez. (BOE Ex. 20, Resp. No. 2.)
- PFF 3. Sandra Rodriguez was an employee of Washington Movers at the time of booking the shipment identified in BOE Ex. 3. (BOE Ex. 20, Resp. No. 3.)
- PFF 4. Sandra Rodriguez booked the shipment identified in BOE Ex. 3 with Mediterranean Shipping Company (MSC). (BOE Ex. 20, Resp. No. 4.)
- PFF 5. Sandra Rodriguez booked the shipment identified in BOE Ex. 3 on behalf of Washington Movers. (BOE Ex. 20, Resp. No. 5.)
- PFF 6. MSC service contract no. 13-306ww was a service contract between MSC and Washington Movers in effect at the time of booking the shipment described in BOE Ex. 3. (BOE Ex. 20, Resp. No. 7; BOE Ex. 32.)
- PFF 7. MSC service contract no. 13-306ww was signed by Sam Ghanem as President of Respondent. (BOE Ex. 20, Resp. No. 8.)
- PFF 8. The documents in BOE Ex. 10 are true copies of email exchanges between Sam Ghanem and Sandra Rodriguez on behalf of Washington Movers in connection with the negotiation of a service contract with Turkon Container Transport and Shipping, Inc. (Turkon). (BOE Ex. 20, Resp. No. 13.)
- PFF 9. The documents in BOE Ex. 13 are true copies of email transmissions between Respondent and MSC. (BOE Ex. 20, Resp. No. 20.)
- PFF 10. Amendment 1 to MSC service contract no. 14-425ww was effective November 4, 2014. (BOE Ex. 20, Resp. No. 26.)
- PFF 11. Amendment 1 to MSC service contract 15-107OTE was effective December 28, 2015. (BOE Ex. 20, Resp. No. 40.)

- PFF 12. On or about October 8, 2015, Sam Ghanem commenced his 18 month term of incarceration described in BOE Ex. 2. (BOE Ex. 20, Resp. No. 43.)
- PFF 13. Sam Ghanem continued to be employed by Respondent after January 1, 2014. (BOE Ex. 20, Resp. No. 44.)
- PFF 14. Sam Ghanem continued to act on behalf of Respondent after January 1, 2014. (BOE Ex. 20, Resp. No. 45.)
- PFF 15. Acting through its officers and employees, Respondent made oral and written representations to third parties that Sam Ghanem was authorized to act on its behalf after January 1, 2014. (BOE Ex. 20, Resp. No. 46.)
- PFF 16. Respondent knew or had reason to know that Sam Ghanem continued to act on behalf of Respondent after January 1, 2014. (BOE Ex. 20, Resp. No. 47.)
- PFF 17. Sam Ghanem signed one or more contracts on behalf of Respondent after January 1, 2014. (BOE Ex. 20, Resp. No. 48.)
- PFF 18. Between January 1, 2014 and December 28, 2015, no person employed by Washington Movers other than Sam Ghanem signed a service contract on behalf of Respondent. (BOE Ex. 20, Resp. No. 49.)
- PFF 19. Sam Ghanem signed Washington Movers' 2013 federal U.S. Corporate Tax Return as President of Washington Movers on June 10, 2015. (WM. Ex. X.)
- PFF 20. Sam Ghanem signed Washington Movers' 2014 federal U.S. Corporate Tax Return as President of Washington Movers on June 10, 2015. (WM. Ex. Y.)
- PFF 21. In becoming an authorized signatory for Washington Movers' business checking account with Industrial Bank on August 14, 2015, Norma Ghanem signed the

certification as Secretary of Washington Movers* that was appended to the signature card. (Tr. of Nov. 9, 2016 Hearing, p. 42, line 16.)

- PFF 22. In signing the certification appended to the signature card for Washington Movers' business checking account with Industrial Bank, Norma Ghanem represented to Industrial Bank that Sam Ghanem was President of the company on August 14, 2015. (WM. Ex. M.)
- PFF 23. Between January 1 and February, 2014, Washington Movers used the BB&T bank account to transact its OTI business. (Washington Movers' Response To The Honorable Clay G. Guthridge's Order To Supplement Record, served September 28, 2016, Response No. 1a) [hereinafter WM Sept. 28 Supplement].
- PFF 24. Sam Ghanem signed checks for Washington Movers drawn on the BB&T bank account after January 1, 2014. (WM Sept. 28 Supplement, Response No. 1b.)
- PFF 25. Between February and October, 2014, Washington Movers used the Sun Trust bank account to transact its OTI business (WM Sept. 28 Supplement, Response No. 2a.)
- PFF 26. Sam Ghanem signed checks for Washington Movers drawn on the Sun Trust bank account in 2014. (WM Sept. 28 Supplement, Response No. 2b.)
- PFF 27. Between October and November, 2014, Washington Movers used the PNC bank account to transact its OTI business. (WM Sept. 28 Supplement, Response No. 3a.)
- PFF 28. Sam Ghanem signed checks for Washington Movers drawn on the PNC bank account. (WM Sept. 28 Supplement, Response No. 3b.)
- PFF 29. Washington Movers used the Industrial Bank account to transact its OTI business after November 12, 2014. (WM Sept. 28 Supplement, Response No. 4a.)

- PFF 30. Sam Ghanem signed checks for Washington Movers drawn on the Industrial Bank account between November 12, 2014 and August 15, 2015. (WM Sept. 28 Supplement, Response No. 4b.)
- PFF 31. MSC transported cargo for Washington Movers pursuant to MSC service contract 14-425. (WM Sept. 28 Supplement, Response No. 5c.)
- PFF 32. MSC transported cargo for Washington Movers pursuant to MSC service contract 15-107OTE.³ (WM Sept. 28 Supplement, Response No. 6c.)
- PFF 33. Turkon Container Transport and Shipping, Inc.⁴ (Turkon) transported cargo for Washington Movers pursuant to Turkon service contract 2014-667. (WM Sept. 28 Supplement, Response No. 7a.)
- PFF 34. The Turkon service contract was negotiated by Sam Ghanem and Sandra Rodriguez on behalf of Washington Movers. (BOE Ex. 10.)
- PFF 35. United Arab Shipping Co. (UASC) transported cargo for Washington Movers pursuant to UASC service contract 2013 0000252641. (WM Sept. 28 Supplement, Response No. 8a.)
- PFF 36. Sam Ghanem was released from prison January 20, 2017. (BOE Ex. 33.)
- PFF 37. The 2014 Commonwealth of Virginia State Corporation Commission Annual Report adds Sonia Kaovech as an officer of Washington Movers. (BOE Ex. 4.)
- PFF 38. The 2015 Commonwealth of Virginia State Corporation Commission Annual Report deletes Sonia Kaovech as an officer of Washington Movers. (BOE Ex. 9.)

³ While WM Sept. 28 Supplement, Response No. 6c refers to service contract number 15-1070TE, the correct number is 15-107OTE as found in FF 65, 66, and in BOE Ex. 16, 17, 28, 29.

⁴ WM Sept. 28 Supplement, Response No. 7 refers to Turkon America, Inc. service contract number 2014-667. Service contract 2014-667 is with Turkon Container Transport and Shipping, Inc. (Turkon) and was signed by Turkon America, Inc. as the agent of Turkon. See FF 66, BOE Ex. 11, 30.

- PFF 39. Sandra Rodriguez is no longer employed by Washington Movers. (Tr. of Nov. 9, 2016 Hearing, p. 21, lines 10-13.)
- PFF 40. Sandra Rodriguez is no longer an officer of Washington Movers. (Tr. of Nov. 9, 2016 Hearing, p. 25, lines 9-21.)